8.3 Issuance

The Competent Authority(ies) should issue a DASR to the Ship Recycling Facility if the document verification process and site inspection prove satisfactory.

The DASR should not be issued until all required documentation has been received and the site inspection has been successfully completed.

The supplement to the DASR (appendix 5 of the annex to the Convention) must be permanently attached to the DASR. Most of the information required for the supplement is available in the SRFP, as described in the Facility Guidelines.

The DASR should be available at the Ship Recycling Facility at all times.

8.4 Amendment

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SOURCE: MEPC.211(63).pdf
available in the SRFP, as described in the Facility Guidelines.

The DASR should be available at the Ship Recycling Facility at all times.

8.4 Amendment

The Competent Authority(ies) may amend the DASR as appropriate. The amendment procedure may be initiated by the Competent Authority(ies) or the Ship Recycling Facility. The Competent Authority(ies) may require a site inspection to verify compliance with the Convention before it amends the DASR. The Ship Recycling Facility should provide the Competent Authority(ies) with appropriate documentation and updates to the SRFP.

Situations which may necessitate amendment of the DASR include, but are not limited to, the following:

1. the Ship Recycling Facility applies for the DASR amendment in order to widen the scope of authorization; for example, after having invested in the Facility and added new capabilities which should be reflected in the DASR;

2. the DASR amendment is triggered by compelling needs on the part of Competent Authority(ies); for example, when new domestic regulations are put into effect;

3. the DASR amendment is triggered by investigations conducted by the

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2. the DASR amendment is triggered by compelling needs on the part of Competent Authority(ies); for example, when new domestic regulations are put into effect;

3. the DASR amendment is triggered by investigations conducted by the Competent Authority(ies) following accidents;

4. the DASR amendment is triggered by a deviation of practice at the Ship Recycling Facility from the SRFP, which thereby affect the contents of the DASR; and

5. the DASR amendment is triggered by a change in the hazardous materials which the Ship Recycling Facility can remove, store and process.

8.5 Suspension

The Competent Authority(ies) may suspend the DASR, or require corrective action by the Ship Recycling Facility, if it has information demonstrating that the Ship Recycling Facility no longer satisfies the terms and conditions of t he DASR. The Competent Authority(ies) may suspend the DASR temporarily or indefinitely, depending on the Ship Recycling Facility's subsequent level of compliance. During any period of suspension, the Ship Recycling Facility is not authorized to conduct recycling ac tivities, except insofar as the Competent

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subsequent level of compliance. During any period of suspension, the Ship Recycling Facility is not authorized to conduct recycling ac tivities, except insofar as the Competent Authority(ies) has specified that the Ship Recycling Facility should continue with certain activities that do not negatively affect the protection of human health or the environment.

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The Competent Authority(ies) should suspend the DASR in cases where site inspections, conducted as part of the audit, are restricted by the Ship Recycling Facility without justification.

8.6 Withdrawal

The Competent Authority(ies) may withdraw the DASR if the Competent Authority(ies) has information demonstrating that the Ship Recycling Facility no longer satisfies the terms and conditions of the DASR. The Competent Authorit y(ies) should generally reserve withdrawal for cases when the Ship Recycling Facility has seriously or repeatedly failed to comply and when suspending the DASR does not present an adequate remedy. The Competent

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for cases when the Ship Recycling Facility has seriously or repeatedly failed to comply and when suspending the DASR does not present an adequate remedy. The Competent Authority(ies) may reinstate the Ship Recycling Facility's authorization only after the Ship Recycling Facility has submitted a new applic ation to the Competent Authority(ies)

demonstrating that the Ship Recycling Facility is in full compliance with the Convention's requirements and related Guidelines.

Any action or modification at the Ship Recycling Facility that may affect the conditions on which the authorization was granted should prompt a new inspection. If such an inspection reveals that the conditions for authorization are no longer in place, the DASR should be withdrawn.

8.7 Renewal

The Competent Authority(ies) may renew the DASR upon written request by the Ship Recycling Facility. The Ship Recycling Facility should support any such request with revised documents, as appropriate, as stated in section 6 above in relation to the Ship Recycling Facility's initial application for authorization. The Competent Authority(ies) may, at its

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documents, as appropriate, as stated in section 6 above in relation to the Ship Recycling Facility's initial application for authorization. The Competent Authority(ies) may, at its discretion, conduct a site inspection before it renews the DASR.

9 VALIDITY

The DASR shall be issued for a period determined by the Party not exceeding five years.

If a Ship Recycling Facility changes ownership, the new owner should within a reasonable time frame, if possible not exceeding 30 days notify the Competent Authority(ies) so that it can amend the DASR accordingly. The new owner should confirm in writing that it will fully comply with all requirements, including the SRFP, and the Convention. The new owner should also provide any supporting docu mentation requested by the Competent Authority(ies). If operations at the Ship Recycling Facility are changed in such a way as to affect the conditions on which authorization was granted, the Competent Authority(ies) may amend, suspend or withdraw the DASR and inform the new owner accordingly.

10 COMMUNICATION OF INFORMATION

10.1 Organizations recognized by the Competent Authority(ies)

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amend, suspend or withdraw the DASR and inform the new owner accordingly.

10 COMMUNICATION OF INFORMATION

10.1 Organizations recognized by the Competent Authority(ies)

The Party shall notify the Organization of the specific responsibilities and conditions of the authority delegated to the organizations recognized by the Competent Authority(ies), for circulation to Parties. In every case, the Competent Authority(ies) retains full responsibility for the authorization issued (regulation 16.3).

The organization recognized by the Competent Authority(ies) may be asked to maintain a list

of surveyors with adequate expertise for conducting the tasks requested by the Party.

Each Party shall report to the Organization and the Organization shall disseminate, as appropriate, a list of the organizations recognized by the Competent Authority(ies) and nominated surveyors that are authorized to act on behalf of that Party in the administration of

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appropriate, a list of the organizations recognized by the Competent Authority(ies) and nominated surveyors that are authorized to act on behalf of that Party in the administration of
matters relating to the control of ship recycling in accordance with the Convention, and the specific responsibilities and conditions of the authority delegated to organizations recognized by the Competent Authority(ies) or nominated surveyors (article 12.3).

10.2 Violations and sanctions